

MARTIN v. FRASER

22CV46236

PLAINTIFF'S MOTION TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES, SET TWO AND REQUEST FOR MONETARY SANCTIONS

The parties were involved in a romantic relationship for approximately 2½ years and shared one child. In June 2020, plaintiff purchased real property with his sole funds. However, legal title was taken as a joint tenant with defendant who resided at the property for 7 months. Plaintiff now seeks a partition of the property and asserts that a joint tenancy was never agreed to, or intended, between the Parties.

On October 10, 2024, Special Interrogatories, Set Two, were served on defendant. By letter to defense counsel dated December 5, 2023, plaintiff demanded that answers (without objection) and extended the date to December 19, 2023. When defense counsel was relieved, plaintiff further extended the time to respond to the discovery to January 26, 2024. This motion was filed on February 9, 2024. To date no response has been provided.

Where, as here, interrogatories are served by mail, responses must be served 35 days after the date of mailing. (California Code of Civil Procedure ("CCP") §§1013(a), 2030.260(a).) Response due date was twice extended by plaintiff. Failure to serve timely responses results in the waiver of all objections, including those based on privilege or work product. (CCP §2030.290(a).) Where no responses are served, a motion to compel such responses is authorized. (CCP §2030.290(b).)

A motion to compel initial discovery responses need only show that discovery was properly served on the opposing party, the time to respond expired, and no response was served. (*Leach v. Sup. Ct.* (1980) 111 Cal.App.3rd 902, 905-06; CCP § 2030.290.)

The motion establishes that plaintiff properly served defendant with the Special Interrogatories, Set Two, and defendant never responded. Nor was any opposition to this motion filed. The request for "non-monetary sanctions" in the form of an issue sanction for failure to produce documents is premature, although the Court will consider such a request in the event no answers are provided in compliance with this Order. Moreover, Courts do not ordinarily order monetary sanctions on a nonopposed initial motion to compel responses when no responses have been served. (*See Puritan Insurance Co. v Superior Court* (1985) 171 Cal.App.3rd 877, 884.)

Based on the foregoing, the Motion to Compel Responses to Special Interrogatories, Set Two is **GRANTED**. Sanctions are **DENIED**. Defendant must provide complete verified answers. Without objection, by April 21, 2024.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a

formal Order pursuant to CRC 3.1312 in conformity with this Ruling.

POKER FLAT P.O.A., INC. v. ROLON

22CV46309

**PLAINTIFF'S MOTION FOR MONETARY SANCTIONS
FOLLOWING NON-ATTENDANCE OF DEFENDANT ROLON
AT THE FIRST SETTLEMENT CONFERENCE**

Defendant owns a parcel of shorefront residential property on Lake Tulloch. The property is located within a common-interest development that is managed by plaintiff. Defendant acquired the real property from a foreclosing bank. At the time of defendant's purchase, there was damage from a landslide/soil subsidence to the land, flora, and improvements (stairways, retaining walls, covered dock, and the home's foundation). Plaintiff brought this action to enforce special assessments to clean the property. According to defendant's Settlement Conference Statement, a geotechnical engineer has been retained to design a retaining wall and drainage system for the property.

A Settlement Conference ("MSC") was scheduled for Oct. 23, 2023, which defendant did not attend. An Order to Show Cause ("OSC") was held on November 17, 2023, where defendant testified he had been ill during the earlier MSC. The Court reset the MSC, did not strike defendant's answer and dismissed the OSC. (The second MSC was held March 4, 2024. It was unsuccessful and a trial has been set.)

To obtain monetary sanctions for non-attendance at a settlement conference, the moving party must show that the other party engaged in bad faith actions or tactics that are frivolous or intended solely to cause unnecessary delay. (California Code of Civil Procedure ("CCP") § 128.5, subd. (a).) The tactics or actions at issue must have been undertaken with bad faith. Notice and an opportunity to be heard must be given. (CCP § 128.5, subd. (c); *Pacific Trends Lamp & Lighting Products, Inc. v. J. White, Inc.* (1998) 65 Cal.App.4th 1131, 1136.)

The necessary showing of bad faith on the part of defendant has not been made, particularly noting that at the OSC hearing the Court found good cause to dismiss and not impose any sanctions.

Based on the foregoing, the Motion for Monetary Sanctions is **DENIED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to CRC 3.1312 in conformity with this Ruling.